

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Robert Langdon	Team: Team # 7	CCRB Case #: 200910252	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 07/01/2009 12:10 AM	Location of Incident: West 165th Street and Nelson Avenue	18 Mo. SOL 1/1/2011	Precinct: 44		
Date/Time CV Reported Thu, 07/02/2009 3:00 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 07/02/2009 3:00 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. LT Johnny Orellana	00000	920679	044 PCT
2. POM David Martinez	06624	947219	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Johnny Orellana	Force: Lt. Johnny Orellana used physical force against § 87(2)(b).	A . Complainant Uncooperative
B . POM David Martinez	Abuse: PO David Martinez damaged § 87(2)(b)'s property.	B . Complainant Uncooperative
C . LT Johnny Orellana	Discourtesy: Lt. Johnny Orellana spoke obscenely towards § 87(2)(b).	C . Complainant Uncooperative

Synopsis

At approximately 12:10 AM on July 1, 2009, § 87(2)(b) was walking in the vicinity of 165th Street and Nelson Avenue in the Bronx with § 87(2)(b) and § 87(2)(b) when she saw two uniformed officers interacting with an unidentified male. § 87(2)(b) said, "He don't have nothing better to do," referring to the officers. The officers then approached her and one of them asked, "What did you say?" § 87(2)(b) believes this officer was a lieutenant or a captain because he was wearing a white shirt. She had seen this officer around the neighborhood before and knew his name to be Odellana. She also read this name off of her arrest paperwork. § 87(2)(b) described Lt. Odellana as a Hispanic male in his early-30s with short, black hair. He was about 5'8" and weighed around 200 pounds. § 87(2)(b) described the other officer, whose name she also read off of her arrest paperwork as PO Martinez, as a white male in his twenties with red hair. He was about 6'0" and weighed between 160 and 180 pounds. Lt. Odellana then asked § 87(2)(b) for her ID, which she provided. When he was finished, Lt. Odellana grabbed § 87(2)(b)'s arm, threw her into the side of a vehicle, and then threw her onto the ground, onto her knee and face (Allegation A). PO Martinez took § 87(2)(b)'s puppy and threw it to the ground (Allegation B). § 87(2)(b) asked Lt. Odellana to "shut the fuck up, bitch." § 87(2)(b) was arrested and charged with § 87(2)(b). Lt. Odellana called § 87(2)(b) a "bitch" multiple times on the way to the stationhouse, and she called him a "bitch" right back (Allegation C).

§ 87(2)(b) contacted the CCRB on July 22, 2009 and scheduled an appointment at the CCRB on July 31, 2009. § 87(2)(b) failed to appear at this appointment and did not call ahead to cancel or reschedule. On August 5, 2009, the CCRB contacted § 87(2)(b) and rescheduled her interview for August 18, 2009. § 87(2)(b) again failed to appear at this appointment and did not call ahead to cancel or reschedule.

§ 87(2)(g)

it is recommended that this case be closed as Complainant Uncooperative.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: